

M/S Bismillah Rice Mill v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 1 November 2023 · 2023:AHC:209682-DB · Writ - C No. 36652 of 2023 · **Disposed; instalment request to be considered under cl. 6.14**

HEADNOTE

A writ challenging a demand notice, confined at the hearing to a prayer for instalments, was disposed of without quashing the notice. If the consumer approaches the authority within ten days, the request to fix instalments is to be considered expeditiously under clause 6.14 of the Electricity Supply Code, 2005. Electricity is to be restored on payment of the demanded sum of Rs 3,22,89,032.

FACTUAL SUMMARY

M/S Bismillah Rice Mill challenged a notice dated 10 April 2021 issued by respondent no. 2, calling upon it to pay Rs 3,22,89,032. At the hearing the mill gave up the wider challenge and asked only that it be allowed to pay that sum in instalments. Counsel for the Electricity Department told the Division Bench that the mill could move an application under clause 6.14 of the Electricity Supply Code, 2005. The Court disposed of the writ on that statement.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Consideration of an instalment application under clause 6.14

HOLDING

The Court refrained from interfering with the demand notice. If the petitioner approaches respondent no. 2 within ten days seeking fixation of instalments, that request shall be considered expeditiously in accordance with clause 6.14 of the Electricity Supply Code, 2005. If the petitioner pays Rs 3,22,89,032, the electricity supply shall be restored. ¶ 1-2

PRINCIPLE TAGS

installment-payment-clause-6.14 The Division Bench treated clause 6.14 as the route for paying the demanded sum in instalments and directed the authority to consider an application filed within ten days in accordance with that clause, without itself granting instalments or examining the demand. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE DEMAND NOTICE DATED 10.04.2021 FOR RS 3,22,89,032

The petitioner confined the prayer to instalments. The Court refrained from interfering with the notice and did not examine the demand on merits. ¶ 1

NOT DECIDED — WHETHER INSTALMENTS MUST BE GRANTED, AND ON WHAT TERMS

Left to consideration by respondent no. 2 under clause 6.14 if the petitioner applies within ten days. ¶ 2